

Contentious Chamber

Decision on the merits 51/2025 of March 13, 2025

File number: DOS-2021-04719

Subject: Complaint regarding the allegedly mandatory acceptance of general terms and conditions

The Contentious Chamber of the Data Protection Authority, composed of Mr. Hielke HIJMANS, president, and Messrs. Dirk Van Der Kelen and Frank De Smet, members;

Considering Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation), hereinafter referred to as "GDPR";

Considering the law of December 3, 2017, establishing the Data Protection Authority, hereinafter referred to as "LCA";

Considering the internal regulations as approved by the House of Representatives on December 20, 2018, and published in the Belgian Official Gazette on January 15, 2019;

Considering the documents in the file;

Has made the following decision regarding:

The complainant:

X, hereinafter referred to as "the complainant"; and

The defendant:

Y, hereinafter referred to as "the defendant".

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I.

Facts and procedure

1.

On June 16, 2021, the complainant filed a complaint with the Data Protection Authority against the defendant.

2.

In his complaint, the complainant states that he wanted to enroll his son online at the conservatory. At the beginning of the online enrollment process, the complainant is invited to create an account and is directed to this end to the website of Z, a communication platform between students and parents on one hand and the Flemish academies of visual arts, music, drama, and dance on the other hand, managed by the defendant. During the account creation process, it is mandatory to accept the general terms and conditions, without which the account cannot be created online. The complainant realizes after some time that he has not created an account with the conservatory itself but rather with Z. The complainant then requested the defendant to delete his own personal data as he believes he has no connection with the defendant, given that he only wishes to enroll his son at the conservatory. The defendant responded by explaining the role it plays in the administrative management of enrollments on behalf of the academy, as well as the role it plays as a data controller and processor of personal data within the framework of Z. The complainant believes that there are violations of the GDPR and has therefore filed a complaint.

3.

On July 5, 2021, the complaint was declared admissible by the Frontline Service based on Articles 58 and 60 of the LCA, and the complaint was forwarded to the Contentious Chamber under Article 62, § 1 of the LCA.

4.

On August 4, 2021, in accordance with Article 96, § 1 of the LCA, the request from the Contentious Chamber to conduct an investigation was forwarded to the Inspection Service, along with the complaint and the inventory of documents.

5.

On September 7, 2021, the investigation by the Inspection Service was concluded, the report was attached to the file, and it was transmitted by the general inspector to the president of the Contentious

Chamber (Article 91, § 1 and § 2 of the LCA).

The report includes findings related to the subject of the complaint and concludes that there is:

1. a violation of Articles 5.1.a), 5.1.b), 5.2, and 6.1 of the GDPR;

The report also contains findings that go beyond the subject of the complaint.

The Inspection Service finds, in broad terms, that there is:

2. a violation of Articles 12.1, 13.1, 13.2, 14.1, 14.2, 5.2, 24.1, and 25.1 of the GDPR;

3. a violation of Articles 4.11), 5.1.a), 5.2, 6.1.a), 7.1, and 7.3 of the GDPR;

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4. a violation of Articles 30.1 and 30.3 of the GDPR.

6.

On May 24, 2022, the Contentious Chamber decides, pursuant to Article 95, § 1, 1° and Article 98 of the LCA, that the case may be examined on its merits.

7.

On May 24, 2022, the concerned parties are informed by registered mail of the provisions as set out in Article 95, § 2 as well as Article 98 of the LCA. They are also informed, pursuant to Article 99 of the LCA, of the deadlines for submitting their conclusions.

For the findings related to the subject of the complaint, the deadline for receiving the defendant's response conclusions has been set for July 4, 2022, the deadline for the complainant's reply conclusions for July 25, 2022, and finally the deadline for the defendant's reply conclusions for August 16, 2022.

8.

On May 25, 2022, the defendant requests a copy of the file (Article 95, § 2, 3° of the LCA), which was transmitted to him on June 13, 2022.

9.

On May 25, 2022, the complainant accepts all communications related to the case electronically.

10.

On May 25, 2022, the defendant accepts all communications related to the case electronically.

11.

On July 3, 2022, the Contentious Chamber receives the defendant's response conclusions regarding the findings related to the subject of the complaint. These conclusions also include the defendant's reaction concerning the findings made by the Inspection Service outside the scope of the complaint.

12.

On July 26, 2022, the Contentious Chamber receives the complainant's reply conclusions regarding the findings related to the subject of the complaint, in which the complainant reiterates his request for deletion.

13.

On August 9, 2022, the Contentious Chamber receives the defendant's reply conclusions regarding the findings related to the subject of the complaint.

14.

On December 13, 2024, the parties are informed that the hearing will take place on January 22, 2025.

15.

On January 22, 2025, the defendant is heard by the Contentious Chamber.

16.

On February 5, 2025, the minutes of the hearing are submitted to the parties.

17.

The Contentious Chamber does not receive any remarks from the defendant regarding the minutes.

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II. Motivation

II.1. Purpose of the decision

18.

The complaint concerns the fact that the complainant had to accept the general terms of the Z platform in order to create an account on the platform, on the one hand, and the fact that his personal data was

processed while he wished to register his son, on the other hand. These aspects were addressed in detail during the hearing.

19.

The Inspection Service found various violations of the GDPR and applicable cookie legislation. In order to ensure effective enforcement of the complainant's rights, the Contentious Chamber decides not to address all the findings of the Inspection Service that exceed the subject of the complaint. However, this does not detract from the fact that it is the defendant's responsibility to take measures, if necessary, to fully comply with all obligations arising from the GDPR.

II.2. Identification of the data controller

20. The question arises as to who should be designated as the data controller for the processing activities on the Z platform.

21.

In its conclusions, the defendant argues that a distinction must be made between two relevant periods during which processing activities take place: on the one hand, from the creation of an account on Z as long as the account of the concerned person is not yet linked to a specific school or academy, and on the other hand, as soon as the data of the concerned person's account is linked to one or more schools/academies, so that the school or academy can, among other things, manage registrations, but can also communicate with parents and students.

22.

The defendant explains that for the first period of processing activities, therefore between the creation of the account and the linking to an academy, he is the data controller because he decides that if a person wants to access the Z platform, an account must be created. The defendant determines which data is requested, and he does not do this at the request of the school or academy. These processing activities are based on Article 6.1.b) of the GDPR, according to the defendant.

23.

As soon as the account is linked to the academy or school, therefore during the second period of processing activities, the defendant's position shifts from data controller to processor. Consequently, the defendant could not respond himself to the complainant's request for deletion since at that time he was not the data controller for these processing activities.

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24.

During the hearing, the defendant reiterates this viewpoint. The defendant specifies in this regard that a subcontracting contract has been concluded with the organizing authority of the school for 165 academies. There are slightly fewer than 165 subcontracting contracts because, for example, the academy of drawing and music in the same municipality falls under a single organizing authority, namely the municipality, and therefore, a single subcontracting contract suffices. The defendant also emphasizes that the database containing the registration data in the relationship between the school and the student is distinct from the database of platform Z (communication platform with students and parents of the academies), which serves only as a relay. The personal data for which the defendant is responsible for processing on one hand and subcontractor on the other can thus be separated.

25.

It is only for the login data to the account on platform Z that the defendant is responsible for processing. As soon as the data subject logs in to access an academy, the data subject provides the legally necessary registration data to register with an academy. For this data, it is the academy that is the data controller. The defendant also indicates that in the case of choosing a new school, the data subject must again complete a full registration of the student via the existing account. The defendant expressly states that there is no exchange of personal data between the academies. Registration is done by academy.

26.

The Contentious Chamber follows this explanation and concludes, in light of these elements, that the defendant is responsible for processing only for the first processing mentioned, namely the creation of the account. Once the account is linked to a school or an academy, that school or academy becomes the data controller and the defendant becomes a subcontractor.

27.

The complaint concerns the mandatory acceptance of the general terms and conditions on the defendant's platform to create an account, thus during the period when the defendant acts as the data controller since the account has not yet been linked to a school or an academy.

II.3. Lawfulness of processing (Articles 5.1.a), 5.2, and 6.1 of the GDPR)

28.

The complainant criticizes the fact that he must accept the defendant's general terms and conditions to enroll his son in the academy. The Contentious Chamber will assess the lawfulness of this.

29.

The complainant states in his complaint and in his conclusions that he does not agree with the obligation to accept the defendant's general terms and conditions in order to enroll his son in the academy. He asserts that the enrollment of his son in an academy cannot be

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conditional upon the mandatory transmission of his own personal data to another data controller other than the academy itself. Its purpose is indeed to enroll his son in the academy so that he can attend classes.

30. Regarding the mandatory acceptance of the defendant's general terms for online registration, the Inspection Service finds that there is no question of a violation. A contract is indeed concluded between the data controller (in this case, the defendant) and the user of Z (in this case, the complainant), and the processing of personal data is necessary for this purpose.

31.

The defendant also argues that the acceptance of general terms as a condition for the conclusion of a contract does not constitute a violation of the GDPR.

32.

The Contentious Chamber notes, as indicated by the defendant and as also found by the Inspection Service, that the complainant accuses the defendant of requiring him to accept the defendant's general terms for the enrollment of his son in the academy of his choice, and that his own personal data is processed for this purpose by the defendant.

33. The Contentious Chamber observes that the academy in which the complainant wishes to enroll his son, like all other academies, associations, and federations, must ensure the management of members as well as the processing of administration. They may choose to carry out these tasks themselves or to engage a specialized company such as that of the defendant for this purpose. The academy in which the complainant wishes to enroll his son uses the services of the defendant for these tasks, who has developed and manages the platform Z. The defendant thus offers its services in member management and administrative processing to academies that wish to use them. New members must first create an account on Z, which can then be linked to the academy (or academies) in which they wish to enroll. The defendant has also explained that it acts as the data controller for the creation of the account, as it determines the purpose and means of this processing (i.e., the creation of the account), which is also not disputed. Once the account is linked to an academy, the defendant acts as a processor on behalf of that academy, which then acts as the data controller.

34. As explained by the defendant in its email of June 15, 2021, and in its conclusions, it is the data controller for the processing of personal data in the context of the creation of the account, before the account is linked to the relevant academy. It follows that if a data subject, as a new member of an academy, wishes to register online, and therefore creates an account on Z, they conclude a contract with the defendant. Article 6.1.b) of the GDPR provides a legal basis for the processing of personal data if "the processing is necessary for the performance of a contract to which the

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The data subject is a party or to the execution of pre-contractual measures taken at their request.¹

35. Contractual obligations towards a data subject may sometimes not be fulfilled without the data subject providing certain personal data.² If the specific processing is part of the provision of the requested service, it is in the interest of both parties to process this data, as without it, the service cannot be provided and the contract cannot be executed. As required by Article 6.1(b) of the GDPR, the processing must be objectively necessary for the performance of a contract. This is the case in the

present matter. It is indeed necessary to process the relevant personal data (i.e., identity data and contact details) when executing services related to member management. The processing of this data allows the defendant to carry out its member management activities so that the academy in question can identify the registered members and contact them via platform Z. In this case, the processing of personal data is part of the contract, given that without the processing of personal data, no account can be created to be subsequently linked to the academy in question. Furthermore, the Contentious Chamber emphasizes that the acceptance of general terms and conditions as a necessary condition for the conclusion of a contract, as in this case the use of Z, does not in itself constitute a violation of the GDPR.

36. As also noted by the Inspection Service and as highlighted by the defendant, the Contentious Chamber draws attention to the possibility for any data subject to register 'offline', thus via the secretariat of the academy in question. In this way, registration via Z can be avoided if the data subject wishes.

37.

Regarding the complainant's accusation that their personal data is also processed while they wish to register their son, and thus would not have a direct link with the academy, the Contentious Chamber notes that the complainant is the father of the student. The Contentious Chamber assumes that at the time of registration, the son was a minor and therefore could not validly conclude a contract himself. Furthermore, the decision to enroll the son in the academy in question falls under the parental authority of the complainant. Consequently, the defendant must also process the personal data of the parent(s) of minor students in order to be able to execute its service.

1 See also Recital (44) of the GDPR.

2 Guidelines 2/2019 on the processing of personal data under Article 6(1)(b) of the GDPR in the context of providing online services to data subjects, https://www.edpb.europa.eu/our-work-tools/our-documents/guidelines/guidelines-22019-processing-personal-data-under-article-61b_fr, point 2.

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38. The Dispute Chamber notes that the Inspection Service found that there was no question of a violation of Article 6.1.b) of the GDPR regarding the creation of the account on Z. The complainant provides no indication that could attest to a violation. The Dispute Chamber therefore concludes that there is no violation of Article 6.1.b) of the GDPR.

II.4. Articles 12.1, 13.1, 13.2, 14.1, 14.2, 5.2, 24.1, and 25.1 of the GDPR

II.4.1. Findings of the Inspection Service

39. In execution of the principle of transparency of Article 5.1.a) of the GDPR, it is necessary, based on Article 12.1, Article 13.1, Article 14.1, and Article 14.2 of the GDPR, that the data controller, in this case the defendant, provides the data subjects with concise, transparent, and understandable information about the personal data being processed. As the data controller (for the creation of the account before linking to an academy), the defendant must comply with Articles 12, 13, and 14 of the GDPR.

40. The Inspection Service finds that the defendant's privacy statement is not transparent and understandable for the data subjects, which is not in compliance with Article 12.1 of the GDPR. In this regard, the Inspection Service refers to the following elements: the privacy statement does not include a table of contents with links allowing data subjects to click to reach the relevant part of the text titled "Privacy Policy." This method is not transparent in the eyes of the Inspection Service and furthermore, it does not facilitate the rights of the data subjects. Next, the Inspection Service notes that the privacy statement is not clear for the data subjects, as it does not specify how the data subjects can ascertain what changes have been made and when they occurred. This also does not facilitate the rights of the data subjects. Finally, the Inspection Service emphasizes that the data subjects are not adequately informed about how they can file a complaint and what they can expect from such a process.

41. The Inspection Service further finds that the defendant's privacy statement is also incomplete, as not all information that must be mentioned under Articles 13 and 14 of the GDPR is included. The Inspection Service arrives at this conclusion based on the following findings. First, the Inspection Service observes that the privacy statement does not contain information about who the actual

recipients of the personal data are or the categories of these recipients, as required by Article 13.1.e) of the GDPR and Article 14.1.e) of the GDPR. According to the Inspection Report, the privacy statement also does not contain information on whether the data subject is obliged to provide the personal data or the possible consequences if such personal data is not provided (Article 13.2.e) of the GDPR). Second, the Inspection Report notes that the privacy statement incorrectly states that the data subject only has the right to file a complaint with the competent supervisory authority after first notifying the defendant, which would not be in compliance with Article 13.2.d) of the GDPR and Article 14.2.e) of the GDPR. Under Article 77.1 of the GDPR, the data subject may contact the supervisory authority in the Member State where they usually reside, where they work, or where the alleged violation has occurred. The Inspection Service therefore asserts that the reference to the website of the DPA can be maintained, but that it should also refer to other supervisory authorities.

II.4.2. Position of the Complainant

42. In its conclusions, the complainant asserts that the layered structure of the adapted general terms and conditions is not clear as it does not provide a clear overview of the personal data being processed.

II.4.3. Position of the Defendant

43. The defendant argues in general terms in its conclusions that Article 12.1 of the GDPR requires that the information in the privacy statement be available in a concise, transparent, and understandable manner for the data subjects. The defendant emphasizes that at the time of the Inspection Report, there was little concrete case law or guidance from (European) judges and supervisory authorities on this matter. Furthermore, the concepts of "understandable" and "concise" are, according to the defendant, subjective notions. Nevertheless, the defendant has adapted its privacy statement due to organizational changes. It refers to the privacy statement that the Inspection Service evaluated as the "old privacy statement." The defendant contests the findings of the Inspection Service that the defendant's old privacy statement would not be transparent and understandable for the data subjects. Regarding the absence of a table of contents, the defendant emphasizes that the Inspection Service does not provide a reason why a table of contents would be necessary. The defendant assumes that the purpose of a table of contents could be to allow data subjects to navigate more quickly through the privacy statement. The defendant highlights that (its old) privacy statement does not require a table of contents.

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The privacy statement should indeed only mention the main elements of the relevant articles of the GDPR (Articles 12, 13, and 14 of the GDPR). Furthermore, according to him, a table of contents could unnecessarily lengthen the privacy statement. For the purposes of transparency and facilitating the rights of the data subjects, however, the defendant has used intermediate headings. Finally, regarding this point, the defendant emphasizes that the privacy statement of the Data Protection Authority (DPA) does not include a table of contents, so he believes that having one does not constitute a well-known best practice.

44. Regarding the Inspection Service's finding about the changes to the privacy statement, the defendant argues that the privacy statement is indeed clear. Data subjects are thus aware that a privacy statement is a document that is constantly evolving and that it should be consulted from time to time. In the new version of the privacy statement, the defendant has mentioned at the top the date of the last update (June 2022). According to the defendant, the absence of mention or maintenance of a version management system and indication of specific changes does not constitute a violation of Article 12 of the GDPR, and he emphasizes that the privacy statement of the DPA also does not have a 'clear version management' or a way to verify what has specifically been changed.

45. The defendant also contests the Inspection Service's finding that data subjects are not informed of how they can file a complaint and what they can expect from such a process. The defendant states that his previous privacy statement mentions the rights of data subjects as well as how they can contact him (including the email address and postal address). Furthermore, the previous privacy statement also mentions the timeframe within which the defendant will respond to the request. The defendant asserts that the Inspection Service does not indicate what information is lacking or what is not transparent. In the previous privacy statement, the defendant had mentioned that if the data

subject had comments or complaints about how he processes personal data, he requested that the data subject report it to him first in order to establish a dialogue and reach an amicable solution. The defendant emphasizes that the purpose of this mention is to find a good faith solution between him and the data subject. However, this does not necessarily mean that access to the competent supervisory authority is hindered. On the contrary, the previous privacy statement mentions the right of data subjects to file a complaint with a supervisory authority. This procedure also reveals that the data subject in question has not been prevented from filing a complaint with the DPA.

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46. Regarding the lack of completeness of the former privacy statement, the defendant claims that when updating the privacy statement, the information that the Inspection Service deemed missing has been included.

II.4.4. Assessment of the Contentious Chamber

47. The Contentious Chamber finds that the Inspection Service establishes a violation of Article 12.1 of the GDPR, because the privacy policy would contain irrelevant and inaccurate information, namely the absence of a table of contents, a lack of version management, and the absence of information on how data subjects can file a complaint and what they can expect from such a process.

48. Article 12.1 of the GDPR requires that information be concise, transparent, understandable, and easily accessible, and that clear and plain language be used. The requirement that the provision of information to data subjects and communication with them must be done "in a concise, transparent, understandable, and easily accessible form" means that data controllers must present information/communications effectively and succinctly to avoid information fatigue. In an online context, the use of a layered privacy statement/communication will allow a data subject to navigate directly to the specific part of the privacy statement/communication they wish to read, instead of having to sift through long sections of text in search of specific topics.

49. Regarding the absence of a table of contents, the Contentious Chamber notes that this is not a formal requirement of a privacy statement. It is always necessary to analyze on a case-by-case basis whether a privacy statement meets the requirements of Article 12.1 of the GDPR. In the present case, the Contentious Chamber finds that the former privacy statement consists of five pages and that intermediate headings and short, clear paragraphs were used, allowing the data subject to easily find the information sought. According to the Contentious Chamber, a table of contents would not provide essential added value concerning the requirements of Article 12.1 of the GDPR in this specific case.

50. Furthermore, the Inspection Service found that the former privacy statement was unclear regarding potential changes and that there was no clear version management intended to facilitate the rights of data subjects. The Contentious Chamber recalls that the GDPR does not impose a requirement regarding when notifications (and methods) of changes to the provided information must be made.

3 WP29, Guidelines on transparency under Regulation (EU) 2016/679, p. 7, available via the following link:

<https://ec.europa.eu/newsroom/article29/items/622227>.

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previously under Articles 13 and 14 of the GDPR must be addressed to a data subject. The data controller must, however, in this case, respect the principles of fairness and accountability, taking into account the reasonable expectations of the data subject or the potential impact of the changes on the data subject. According to the guidelines on transparency under Regulation (EU) 2016/679 of the Article 29 Data Protection Working Party, a notification of changes in the privacy statement must always be made through an appropriate means (for example, by email, paper mail, a pop-up on a webpage, or another method that will effectively draw the attention of the data subjects to the changes) and must comply with the requirements of Article 12 regarding conciseness, transparency, comprehensibility, and easily accessible, simple, and clear language.⁴ References in the privacy statement indicating that the data subject should regularly check whether the privacy statement/communication

has been modified or updated are considered, within the framework of Article 5.1.a) of the GDPR, not only insufficient but also unfair.⁵

51.

The Contentious Chamber notes in this context that the version of the old privacy statement, as analyzed by the Inspection Service, states the following: "By this Privacy Statement, we inform you of the processing activities that we may carry out with your personal data. We reserve the right to adapt this Privacy Statement at any time. Any substantial modification will be clearly indicated to you. We advise you to consult this document regularly." (N.B.: free translation made by the Translation Service of the Data Protection Authority, in the absence of an official translation).

52.

The Contentious Chamber believes that in the version of the old privacy statement, as analyzed by the Inspection Service, the reference to modifications does not, in itself, meet the requirements for transparent information, as indicated in Article 12.1 of the GDPR, as also pointed out by the complainant. The method used to draw the attention of the data subject to the changes must be explicit and effective. This must allow the data subject not to "miss" the changes and to have a reasonable period to a) understand the nature and impact of the change and b) exercise their rights under the GDPR regarding the changes (for example, by withdrawing consent to processing or objecting to processing).⁶ As indicated by the defendant, this could be done, if necessary, by sending timely notifications.

4 WP29, Guidelines on transparency under Regulation (EU) 2016/679, p. 7, available via the following link:

<https://ec.europa.eu/newsroom/article29/items/622227>.

5 Group 29; Guidelines on transparency under Regulation (EU) 2016/679, p. 20.

6 Group 29; Guidelines on transparency under Regulation (EU) 2016/679, p. 20.

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of an email to the concerned parties prior to the change of the privacy statement or via a pop-up on the website.

53. Regarding the lack of version management in the old privacy statement, as indicated by the Inspection Service, the Contentious Chamber notes that the GDPR does not impose a requirement to maintain version management. If changes to the privacy statement are communicated effectively, in accordance with the points above, the Contentious Chamber believes that version management of the published privacy statement is not necessary.

54. Concerning the finding that access to the competent supervisory authority is hindered by the fact that in the old privacy statement, the concerned party is asked, in case of comments or complaints, to first contact the defendant before filing a complaint with the DPA, the Contentious Chamber emphasizes that this is merely a request from the defendant and not a prerequisite. Furthermore, the Contentious Chamber encourages dialogue between data controllers and concerned parties in case of questions, comments, or complaints, in order to find the most appropriate solution for all parties involved. The Contentious Chamber believes that this request does not hinder access to the DPA.

55. Next, the Contentious Chamber addresses the findings of the Inspection Report which establish that the old privacy statement does not effectively mention all the mandatory information from Articles 13 and 14 of the GDPR. The Inspection Service notes that the privacy statement does not provide any concrete information about the recipients or categories of recipients of personal data (Articles 13.1.e) and 14.1.e) of the GDPR). The Contentious Chamber observes that the old privacy statement states that the personal data of the concerned parties are processed exclusively for internal use within the organization of the defendant and that the personal data will not be sold, transferred, or communicated to third parties, unless the concerned party has given explicit consent for this purpose or if the transfer is necessary for the performance of the contract or is legally required. The Contentious Chamber notes

that in the privacy statement of June 2022, the defendant took into account the remarks of the Inspection Service, as it included a list of the recipients of personal data.

7 See also: <https://www.autoriteprotectiondonnees.be/citoyen/agir/demander-une-mediation>: "If you wish to request mediation and it concerns the exercise of your rights, we ask you in all cases to first exercise your rights before requesting mediation. If it is another matter (e.g.: you believe that your data is being processed without your consent), we also invite you to first attempt to contact the data controller before requesting mediation. The documents submitted may be communicated to the data controller as part of the mediation."; and

<https://www.autoriteprotectiondonnees.be/citoyen/agir/introduire-une-plainte>: "If you wish to file a complaint and it concerns the exercise of your rights, we ask you in all cases to exercise your rights before filing a complaint. If your complaint concerns another matter (e.g.: you believe that your data is being processed without your consent), we also invite you to first attempt to contact the data controller before filing a complaint." (emphasis added).

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staff, their role, a reference to the recipients' privacy statement, and the legal basis on which they receive personal data.

56. The Inspection Service also found that there was a violation of Article 13.2.e) of the GDPR, as no information was provided regarding whether the data subject is obliged to provide personal data and what the potential consequences would be if such data is not provided. In this context, the Inspection Service emphasizes that under section 4 "What personal data is processed, for what purpose and on what legal basis" of the old privacy statement, it is only mentioned that the processing of personal data is necessary "for the performance of the contract between the user and [the defendant]." The Contentious Chamber notes that the old privacy statement did indicate that the provision of personal data by the data subject was necessary for the performance of the contract, but it did not mention the consequences if such data was not provided by the data subject, as required by Article 13.2.e) of the GDPR. In the meantime, the necessary information has been added to the privacy statement of June 2022, stated as follows: "The provision of your personal data is mandatory if you wish to create an account on [platform]. If you do not provide us with your personal data, it is unfortunately not possible to create an account on [platform]. You will then not be able to access our platform." The Contentious Chamber finds that the privacy statement of June 2022 thus complies with Article 13.2.e) of the GDPR, so it is a matter of a historical violation of this article since this violation has since been remedied.

57. The Inspection Report also finds that the privacy statement incorrectly states that the data subject only has the right to lodge a complaint with the competent supervisory authority after first notifying the defendant, which would not be in accordance with Article 13.2.d) of the GDPR and Article 14.2.e) of the GDPR, and that there is a lack of a list of competent controllers.

58. The Contentious Chamber finds that Article 13.2.d) of the GDPR prescribes that the data subject must be informed that they have the right to lodge a complaint with a supervisory authority. Given the field in which the defendant operates, namely part-time artistic education in Flanders, referring only to the APD is sufficient in these specific circumstances. The Contentious Chamber considers that it is not useful in this case to include a reference to other supervisory authorities in the European Union. A reference to all possible supervisory authorities would indeed hinder the requirement for concise, understandable, and transparent information.

59. Regarding the complainant's grievance that the old privacy statement does not clearly indicate the various processing activities and the related information by

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processing, the Contentious Chamber notes that this was indeed the case, which constitutes a violation of Article 12.1 of the GDPR. The Contentious Chamber observes that in the 2022 version of the privacy statement, the defendant clearly and succinctly presents this information, thereby remedying this violation.

60. In light of these elements, the Contentious Chamber considers that there was a violation of Article 12.1 of the GDPR, on the one hand due to the mention in the old privacy statement—as examined by the Inspection Service—of the passage stating that data subjects must regularly check whether the

privacy statement has been modified or updated, and on the other hand due to the lack of clarity in the presentation of information regarding the processing of personal data. Furthermore, the Contentious Chamber finds that there was a violation of Article 13.2.e) of the GDPR, given that no information was provided regarding the obligation for the data subject to provide personal data and the potential consequences if such data is not provided. Finally, the Contentious Chamber concludes that the lack of concrete information in the privacy statement, as analyzed by the Inspection Service, regarding the recipients of personal data constituted a violation of Article 13.1.e) and Article 14.1.e) of the GDPR. The Contentious Chamber notes that these historical violations have since been remedied.

II.5. Article 17 of the GDPR: Right to erasure

61. Article 17.1 of the GDPR states that the data subject may obtain from the controller the erasure, without undue delay, of personal data concerning them and that the controller is obliged to erase such personal data without undue delay when the personal data are no longer necessary in relation to the purposes for which they were collected or otherwise processed.

62. In accordance with Article 12.3 of the GDPR, the controller provides the data subject with information on the measures taken in response to a request made under Articles 15 to 22 of the GDPR, without undue delay and in any event within one month of receiving the request. If necessary, this period may be extended by 2 months, taking into account the complexity and number of requests. The controller informs the data subject of this extension within one month of receiving the request. If the controller does not act on the request made by the data subject, they shall inform the data subject without delay and at the latest within one month of receiving the request of the reasons for their inaction (Article 12.4 GDPR).

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63. On June 7, 2021, the complainant requested the defendant to delete their personal data. On the same day, the defendant responded to the complainant's request and subsequently clarified this response on June 15, 2021. The defendant asserts that it responded to the complainant's request within the prescribed one-month period, in accordance with Article 12.4 of the GDPR, by indicating that it could not comply with the request, as it was not acting as the data controller for this processing. Regarding the management of registrations, the relevant academy is the data controller, given that the account is linked to the academy. The defendant specifies that its only role in the management of registrations is the processing of personal data at the request of the academy. Therefore, the defendant acts as a processor in this case. The defendant then informed the complainant that they should direct their deletion request to the academy so that the account could be dissociated. Once the account was dissociated, the defendant would have the ability to delete the personal data for which it is the data controller.

64. The Contentious Chamber notes that Article 17.1 of the GDPR stipulates that the data controller must delete personal data at the request of the complainant. Since the defendant was not the data controller of personal data at the time of the request, the defendant cannot be accused of failing to proceed with the deletion. The defendant also informed the complainant within the one-month period prescribed by Article 12.4 of the GDPR regarding the reasons why it could not comply with the deletion request.

65. The Contentious Chamber therefore concludes that there is no violation of Article 12.4 of the GDPR and Article 17.1 of the GDPR.

66. The Contentious Chamber emphasizes, however, that it is the responsibility of the data controller to facilitate the exercise of the rights of the data subjects, in accordance with Article 12.2 of the GDPR, even when this right is exercised in relation to a processor. It is up to the data controller and the processor to include the necessary clauses in the processing agreement in accordance with Article 28.3.e) of the GDPR.

67. During the hearing, the defendant explained that it had since adapted its working method. Now, in the event of a deletion request, the account is deleted from platform Z; however, the data held at the registration academy is retained because another legal basis applies in that case, such as the performance of a contract between the academy and the data subject (Article 6.1.b) of the GDPR), or as a statutory obligation to retain certain personal data of students for a specified period (Article 6.1.c) of the GDPR). The defendant informs the data subject that their account has been deleted and that if

they wish to access it again in the future, a new account can be created, and a link with the students is then required again. Once an account has been deleted, it is completely removed. However, the data is still processed by the schools because the decree on part-time artistic education stipulates what must happen to this data and also prescribes a specific retention period.

III. Sanctions

68. Based on the case file, the Contentious Chamber concludes that there have been several violations of the GDPR.

69. Under Article 100 of the LCA, the Contentious Chamber has the power to:

- 1° dismiss the complaint;
- 2° order a dismissal;
- 3° pronounce a suspension of the ruling;
- 4° propose a settlement;
- 5° issue warnings and reprimands;
- 6° order compliance with the requests of the data subject to exercise their rights;
- 7° order that the interested party be informed of the security issue;
- 8° order the freezing, limitation, or temporary or permanent prohibition of processing;
- 9° order compliance with the processing;
- 10° order the rectification, restriction, or deletion of data and notification of such to the recipients of the data;
- 11° order the withdrawal of the accreditation of certification bodies;
- 12° impose penalties;
- 13° impose administrative fines;
- 14° order the suspension of cross-border data flows to another state or an international organization;
- 15° refer the case to the public prosecutor of the Brussels Prosecutor's Office, who will inform it of the follow-up given to the case;
- 16° decide on a case-by-case basis to publish its decisions on the website of the Data Protection Authority.

70. Based on the case file, the Contentious Chamber concludes that there have been several violations of the GDPR. In particular, there was a violation of Article 12.1 of the GDPR, due in part to the mention in the previous privacy statement, as analyzed by the Inspection Service, of the passage indicating that data subjects must regularly check whether the privacy statement has been modified.

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Such an appeal may be introduced by means of a contradictory application which must include the details listed in Article 1034ter of the Judicial Code⁹. The contradictory application must be filed with the registry of the Market Court in accordance with Article 1034quinquies of the Judicial Code¹⁰, or via the e-Deposit IT system of the Justice (Article 32ter of the Judicial Code).

(signed) Hielke HIJMANS

President of the Litigation Chamber

9 "The application must contain, under penalty of nullity:

- 1° the indication of the day, month, and year;
- 2° the name, first name, and address of the applicant, as well as, where applicable, their capacity and national register number or business number;
- 3° the name, first name, address, and, where applicable, the capacity of the person to be summoned;
- 4° the subject and a brief statement of the grounds for the application;
- 5° the indication of the judge who is seized of the application;
- 6° the signature of the applicant or their lawyer."

10 "The application, accompanied by its annex, is sent, in as many copies as there are parties involved, by registered letter to the clerk of the jurisdiction or filed with the registry."